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PART I—Orders and Notifications by the Governor of West Bengal, the High Court, Government Treasury, etc.

WEST BENGAL ELECTRICITY REGULATORY COMMISSION

NOTIFICATION

No. 63 /WBERC

Kolkata, the 14th November, 2019

In exercise of the powers conferred by sub-section (1) and clauses (za) and (zb) of sub-section (2) of section 181 read with sub-section(1) and (3) of section 43, sub-section (1) and (2) of section 57, sub-section (1) of section 59, clause (i) of sub-section (1) of section 86 and section 97 of the Electricity Act, 2003 (36 of 2003) and all powers enabling it on that behalf, the West Bengal Electricity Regulatory Commission hereby makes the following regulations to amend the West Bengal Electricity Regulatory Commission (Standards of Performance of Licensees Relating to Consumer Services) Regulations, 2010 published under notification no. 46/ WBERC dated 31st May 2010 and as amended upto date by West Bengal Electricity Regulatory Commission (Standards of Performance of Licensees Relating to Consumer Services) (First Amendment) Regulations, 2013 published under notification no. 57/WBERC dated 26th August, 2013 and West Bengal Electricity Regulatory Commission (Standards of Performance of Licensees Relating to Consumer Services) (Second Amendment) Regulations, 2013 published under notification no. 61/ WBERC dated 7th January, 2014 (hereinafter referred to as the "Principal Regulation").

1. Short title, extent and commencement:

- 1.1. These Regulations may be called the West Bengal Electricity Regulatory Commission (Standards of Performance of Licensees Relating to Consumer Services) (Third Amendment) Regulations, 2019.
- 1.2. These extend to the whole of West Bengal.
- 1.3. These shall come into force on the date of their publication in the Official Gazette.

2. After the clause (xix) of regulation 2.1 of the principal regulation the following clause (xix)(a) shall be inserted:

'(xix)(a) "notified voltage" means a voltage notified by the Government of West Bengal under intimation to the Central Electricity Authority for the purpose of specifying the voltage level upto which self-certification is to be carried out."

3. After regulation 3.1.3 of the principal regulations the following regulations shall be inserted:

"3.1.4 All distribution licensees shall, within one year, from the date of publication of notification in the official Gazette prepare an online system to receive application, generate quotation and receive payment thereof from the intending or existing consumers for supply of electricity or extension of load or alteration of service, as the case may be. The online system shall be able to generate quotation of expenditure required to provide for such new connection or extension of load or alteration of service based on the required load (in kVA / kW). Such amount shall consider all requirements under regulation 3.1.2 of the Principal Regulation. The system shall, immediately upon submission of application generate a unique application number for each intending or existing consumer and provide facility to track the status of the application by the intending or existing consumers. Licensees shall maintain adequate facilities in their supply office to assist the intending / existing consumers with the online system.

Provided that the difference, if any, between the actual expenditure incurred by the licensee and the amount provisionally paid by the consumer based on the system generated quotation shall be adjusted with the first six months' electricity bill of the consumer.

3.1.5 The licensees shall, at least one month prior to implementation of online application system as mentioned in regulation 3.1.4 of these Regulations, publish a notice in four daily newspapers, at least one in Bengali and one in English, with prior approval of the Commission."

4. Clause (a) of regulation 3.2.1 of the principal Regulations shall be deleted.

5. The words "Pollution Clearance" in regulation 13.11 of the principal Regulations shall be deleted.

6. Paragraph 6 of Annexure- A1 of the principal Regulations shall be deleted.

7. Paragraph number 8 of Annexure -B to Principal Regulations shall be substituted as below:

"8. I/ We declare that electrical installation installed at my /our premises is required to be supplied at notified voltage or below and it does not include installations of mines, oil fields and railways. I/We confirm that I/we have submitted the report of self-certification in respect of the electrical installation, installed at my/our premises to the Electrical Inspector in the formats, as framed and the same has duly been received by the Office of the Electrical Inspector. I/We, also enclose the receipted copy / copy of system generated acknowledgment of the self-certification in respect of the electrical installation, installed at my/our premises.

Or

I/We also enclose a certificate issued by the office of Electrical Inspector in respect of electrical installations installed at my / our premises."

8. Paragraph 10 of Annexure -B to Principal Regulations shall be deleted.

By order of the Commission,

Place: Kolkata

Date: 14th November, 2019

T. K. MUKHERJEE
Secretary to the Commission